



## COUNTY OF SONOMA

575 ADMINISTRATION  
DRIVE, ROOM 102A  
SANTA ROSA, CA 95403

### SUMMARY REPORT

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**Agenda Date:** 12/10/2019

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**To:** Board of Supervisors

**Department or Agency Name(s):** Permit Sonoma

**Staff Name and Phone Number:** Hannah Spencer (707) 565-1928

**Vote Requirement:** Majority

**Supervisory District(s):** Fifth

**Title:**

**2:00 P.M. -** AGP19-0006 New Land Conservation Act Contract

#### **Recommended Action:**

Hold a public hearing and adopt a Resolution to expand Agricultural Preserve 2-255 by adding 136.01 acres and, approve a new Non-Prime Land Conservation (Williamson) Act Contract and Land Conservation Plan on the same 136.01 acre parcel, for a grazing property located at 1800 Valley Ford Freestone Rd, Valley Ford; APN 026-080-006; PRMD File No. AGP19-0006; Supervisorial District 5. (Fifth District)

#### **Executive Summary:**

Sonoma County's Land Conservation Act program has four contract-types: a) Prime contracts for crop agriculture with a 10-acre minimum parcel size requirement; b) Non-Prime contracts for grazing with a 40-acre minimum; c) Open Space contracts with a 40-acre minimum, and d) Hybrid contracts with a mix of agricultural and open space also with a 40-acre minimum. This is a combined request to approve an expansion of an existing Agricultural Preserve by adding 136.01 acres and, to execute a new Non-prime Land Conservation Act Contract for the same 136.01-acre parcel. Land Conservation Act Contracts assists in the preservation of agricultural and/or open space lands throughout Sonoma County. In exchange for retaining land in agriculture and/or open space, the landowner receives reduced property taxes. Staff recommends the Board of Supervisors approve the Agricultural Preserve expansion and new contract request.

#### **Discussion:**

The Douglas and Sharon Beretta Trust seeks approval to expand Agricultural Preserve 2-255 by establishing a new Non-prime Land Conservation (Williamson) Act Contract on an adjacent 136.01 acre parcel with 130 acres of grazing land and adding the parcel to the existing Preserve.

#### **Site Characteristics:**

The project site is surrounded by grazing lands and is accessed from Valley Ford Freestone Road, one mile north of the Valley Ford downtown area. The project site contains 130 acres grazing land, a 1,600 square foot residence with a carport and yard, and a barn for hay and feed storage. Ebabias Creek, a perennial tributary to the Estero Americano, runs along the western property line of the project site. The property is split zoned LEA (Land Extensive Agriculture) B6-160 acre density / LEA (Land Extensive Agriculture), CC (Coastal Combining Zone) B6-160/640 acre density (160 acres per dwelling unit/640 acre minimum parcel size), RC50/50 (Riparian

Corridor with 50-foot setbacks), RC 100/50 (Riparian Corridor with 100-foot and 50-foot setbacks), SR (Scenic Resources) and VOH (Valley Oak Habitat).

**Uniform Rules:**

The December 2011 Board of Supervisors' update of the *Sonoma County Uniform Rules for Agricultural Preserves and Farmland Security Zones* ("Uniform Rules") eliminated the distinction between Prime (Type I) and Non-Prime (Type II) Agricultural Preserves. This allows the County to enter into either a Prime or Non-Prime contract in any established Preserve. The new preserve land is adjacent to Preserve 2-255.

**Enlargement of the Agricultural Preserve:**

To be considered for a contract, land must be in a designated Agricultural Preserve. The Board may consider adding adjacent land to a designated Agricultural Preserve, and consider its qualification for a contract. The 136.01 acre subject parcel is currently not in an existing Agricultural Preserve; this application will add the property to Preserve 2-255 and establish eligibility for a Williamson Act contract. The subject parcel is more than one mile from any incorporated city limits. The subject parcel qualifies for inclusion in the Agricultural Preserve Area for the reasons specified in Resolution Findings 1 through 4 (see Attachment 1). Additionally, the project is Categorical Exempt from the California Environmental Quality Act (CEQA) per Section 13517 of the CEQA Guidelines.

**New Land Conservation (Williamson) Act Contract:**

To be eligible for a new Non-Prime Williamson Act contract, the subject parcel must be at least 40 acres in size, have 50% of the total parcel dedicated to grazing land and, once in a designated Agricultural Preserve, meet the minimum income requirements of the Williamson Act. The subject parcel is 136.01 acres in size, and has 130 acres of land devoted to a commercial grazing operation. The grazing operation is projected to provide sufficient income to qualify for a Land Conservation Act contract for non-prime agricultural land.

**Staff Recommendation:**

Staff recommends the Board approve the request because all the state and local requirements for expansion of an Agricultural Preserve Area and approval of a new Non-prime Land Conservation Act Contract for the 136.01 acre parcel can be met.

**Prior Board Actions:**

- a. On December 13, 2011, the Board approved the Sonoma County Uniform Rules for Agricultural Preserves and Farmland Security Zones (Resolution No. 11-0678).

**FISCAL SUMMARY**

**Narrative Explanation of Fiscal Impacts:**

Approval of the Land Conservation Act Contract means that the owner will pay reduced property taxes based upon the value of the agricultural uses rather than the land value under Proposition 13. This reduces the County's share of property tax revenue for the subject parcel. For this particular contract, the Assessor

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estimates the property assessment value will be reduced by approximately \$613,451.00. Property taxes are generally 1.1% of assessed value.

**Narrative Explanation of Staffing Impacts (If Required):**

N/A

**Attachments:**

ATT 1-A: Draft Board of Supervisors Resolution

ATT 1-B: Attachment A-Agricultural Preserve Map

ATT 2: Proposal Statement prepared by applicant

ATT 3: Site Plan

ATT 4: Assessor's Parcel Map

**Related Items "On File" with the Clerk of the Board:**

Land Conservation Act Contract with attached Exhibit A (legal description) and Exhibit B (Land Conservation Plan with attached Site Plan).